

Ajay Kumar Vishwakarma v. State of U.P.

Allahabad High Court · Division Bench · 14 September 2017 · WRIT - C No. 42972 of 2017 · **Writ disposed; petitioner relegated to Executive Engineer under clause 6.5.**

HEADNOTE

A consumer disputing post-assessment electricity consumption and alleging inflated bills must approach the Executive Engineer under clause 6.5 of the U.P. Electricity Supply Code, 2005. The High Court disposed of the writ with liberty to do so and directed the third respondent to pass an appropriate order within two weeks of a certified copy being filed.

FACTUAL SUMMARY

Ajay Kumar Vishwakarma petitioned the Allahabad High Court in Writ-C No. 42972 of 2017 against the State of Uttar Pradesh and three others. After an electricity assessment he disputed the recorded consumption and alleged that the bills were inflated. He sought writ relief on that billing dispute rather than first invoking the Supply Code objection process. The Division Bench heard counsel for the petitioner and disposed of the petition on 14 September 2017.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing-dispute-executive-engineer

HOLDING

Where the consumer disputes electricity consumption after assessment and alleges inflated bills, the remedy is to approach the Executive Engineer under clause 6.5 of the U.P. Electricity Supply Code, 2005; the writ is disposed with liberty to file a certified copy before the third respondent, who shall then pass an appropriate order within two weeks. ¶ 1

PRINCIPLE TAGS

billing-objection-to-executive-engineer-under-6.5 A consumer disputing post-assessment electricity consumption and alleging inflated bills must approach the Executive Engineer under clause 6.5 of the U.P. Electricity Supply Code, 2005.. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONER'S ELECTRICITY BILLS WERE INFLATED OR THE ASSESSED CONSUMPTION WAS CORRECT

¶ 1